

SENATE No. 1654

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to postsecondary education in correctional facilities.

PETITION OF:

NAME:

Brendan P. Crighton

DISTRICT/ADDRESS:

Third Essex

SENATE No. 1654

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 1654) of Brendan P. Crighton for legislation relative to postsecondary education in correctional facilities. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to postsecondary education in correctional facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The executive office of education and the executive office of administration and finance,
2 in consultation with the department of correction, shall conduct a comprehensive assessment of
3 the status of the delivery of postsecondary education programs in correctional facilities for the
4 purpose of expanding the high-quality provision of such. This assessment shall include, but need
5 not be limited to:

6 (a) the current provision of postsecondary education programs (degree and non-degree,
7 for- and non-credit), enrollments, Pell Grant utilization, completions, and equity measures
8 related thereto, (b) a determination of the level of unmet demand for postsecondary education
9 among incarcerated persons, informed by facility populations, educational assessment data, and
10 other indicators of current and potential readiness for program participation, (c) a needs
11 assessment of the facilities, materials and staffing required for expanding the delivery of high-
12 quality, workforce-aligned postsecondary education programs in correctional facilities in line

with potential demand, including an inventory of the correctional facilities, including, but not limited to, classrooms, multipurpose rooms, libraries and study rooms, staffing, and materials and learning infrastructure, including, but not limited to, education technology and internet access that is currently available for the delivery of postsecondary education, (d) recommendations for and a cost analysis of the improvement of such programs, facilities, staffing, materials, and infrastructure to meet the unmet demand for postsecondary education and support program innovation and expansion, (e) an analysis of the policies of the department of correction impacting the postsecondary education of incarcerated persons, including, but not limited to: (i) classification regulations and processes, (ii) facility transfer policies and practices, (iii) data systems and reporting, (iv) a listing of any other specific barriers to the effective delivery of postsecondary education programs to incarcerated persons, and (v) a survey of (1) students of postsecondary education programs in correctional facilities, (2) former students of such programs, conducted in consultation with regional reentry programs, and (3) any group or person the division deems necessary, and (f) a solicitation of feedback from institutions of higher education that provide postsecondary education programs in correctional facilities to understand current needs, program delivery costs, credit transferability, and other issues impacting program access and completion, (g) a survey of other state agencies regarding staff, programs, policies, resources, and funding relevant to expanding delivery of postsecondary education programs in corrections facilities the results of which would serve to generate: (i) recommendations for establishing ongoing inter-agency planning and cooperation to expand and support the delivery and completion of postsecondary education programs during and after incarceration (including efforts related to developing processes for timely access to the transcripts and academic records incarcerated individuals need to enter collegiate coursework), (ii) recommendations for

36 increasing access for corrections staff to professional development and postsecondary education
37 programs, (iii) recommendations for a process of regular executive and legislative review of
38 progress toward expanding program delivery and completion of postsecondary education.

39 The survey will target an array of relevant agencies including, but not limited to: the
40 executive office of education, the department of elementary and secondary education, the
41 department of higher education, the office of student financial assistance, the department of labor
42 and workforce development, commonwealth corporation, the executive office of health and
43 human services, the executive office of veterans services, division of capital asset management
44 and maintenance, and the executive office of housing and livable communities.

45 (b) Not later than January 1, 2026, the secretary of administration and finance shall issue
46 a report regarding the needs assessment conducted pursuant to subsection (a) of this section. The
47 report shall be submitted to the clerks of the house of representatives and the senate.